

The Court previously continued these motions to September 16, 2026 to permit supplemental briefing to address new evidence submitted with Golden Gate Bell's reply. Although Defendant's supplemental brief references an opposition from Plaintiff, none appears to have been filed. Plaintiff's counsel shall file a copy of the supplemental brief no later than September 17, 2026.

The parties must be prepared to proceed with an evidentiary hearing on September 30, 2026 at 10:30 a.m., at which counsel may examine the witnesses whose declarations were submitted in support of or in opposition to the motions. Counsel and their witnesses may appear by Zoom. The Court will allot 20 minutes total for the hearing. The Court reserves the right to determine, upon reviewing the brief, whether an evidentiary hearing is necessary. The parties are directed to check the published tentative ruling for the September 30, 2026 9:00 a.m. law and motion calendar for further instructions regarding the evidentiary hearing.

15. 9:00 AM CASE NUMBER: C24-03464
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

See Line 14, above.

16. 9:00 AM CASE NUMBER: C25-00268
CASE NAME: DAVID SISNEROS VS. UNITED PARCEL SERVICE, INC.
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: UNITED PARCEL SERVICE, INC.
TENTATIVE RULING:

This hearing is continued, sua sponte, to October 21, 2026 at 9:00 a.m. No appearance is required on September 16, 2026.

17. 9:00 AM CASE NUMBER: C25-00305
CASE NAME: CORAL MICHEL VS. CITY OF MARTINEZ
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF MARTINEZ
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant City of Martinez ("Defendant")'s motion for summary judgment or in the alternative summary adjudication. The motion relates to Plaintiff Coral Michel ("Plaintiff" of "Michel")'s Complaint for premises liability.

Defendant moves for summary judgment on the grounds that Plaintiff cannot prove that the City of Martinez created or had actual or constructive notice of the alleged condition.

For the following reasons, Defendant's motion for summary judgment is **denied**.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Factual Background

This case arises out of an accident while Plaintiff was riding an electric scooter in the gutter portion of the road at or near Arnold Drive and Gloucester Lane in Martinez.

Plaintiff's premises liability claim alleges:

Defendants negligently and/or recklessly, maintained, managed, operated, controlled and safeguarded the premises at or near Arnold Dr & Gloucester Ln, Martinez, CA 94553, such that an uneven, broken, deteriorating and/or raised portion of the pavement and/or roadway was allowed to exist and be left in disrepair. Defendants failed to barricade the area and/or to warn of the dangerous condition, rendering the area on said premises dangerous and resulting in serious bodily injury to the Plaintiff in the following manner: Plaintiff was operating an electrical scooter on Arnold Dr near Gloucester Ln when suddenly and without warning, the wheels on said scooter struck an uneven, broken, deteriorating and/or raised portion of the pavement and/or roadway. This caused Plaintiff to fall and sustain serious injuries and damages. The actions of the Defendants and/or its employees were below the standard of care and was the cause of Plaintiff's injuries.

The Complaint further alleges that Plaintiff's claim is brought pursuant to Government Code section 835 and 815.2.

Analysis

Legal Standard on Dangerous Condition of Public Property

As a public entity, the City of Martinez may be liable for injuries caused by a dangerous condition of its property.

“Except as provided by statute, a public entity is liable for injury caused by. dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Gov’t Code § 835.) “A public entity had actual notice of a dangerous condition ... if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character.” (Gov’t Code § 835.2(a).) “A public entity had constructive notice of a dangerous condition ... only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” (Gov’t Code § 835.2(b).) “Dangerous condition” means a condition of property that creates a substantial (as distinguished from. minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used. (Gov’t Code § 830(a).)

“[A] claim alleging a dangerous condition may not rely on generalized allegations [] but must specify in what manner the condition constituted. dangerous condition.” (*Cerna v. City of Oakland* (2008) 161 Cal. App. 4th 1340, 1347.) “A plaintiff’s allegations, and ultimately the evidence, must establish. physical deficiency in the property itself.” (*Id.*) A dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such. way as to foreseeably endanger those using the property itself,” or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Id.* at 1347-48.)

Notice

Section 835 “provides for direct liability on the part of public entities for injuries caused by maintaining dangerous conditions on their property when the condition ‘created a reasonably foreseeable risk of the kind of injury which was incurred’ and *either* an employee’s negligence or wrongful act or omission caused the dangerous condition *or* the entity was on ‘actual or constructive notice’ of the condition in time to have taken preventive measures.” (*Hampton v. County of San Diego* (2015) 62 Cal.4th 340, 347-348 [italics added].)

In its motion, the City of Martinez argues that it did not have actual or constructive notice of the allegedly dangerous condition before the incident, and that “Plaintiff cannot establish that the City created the Dangerous Condition.” (Motion at § III(B)(2).)

In support of its motion for summary judgment, the Defendant submitted the declaration of the City of Martinez’s Public Works Maintenance Superintendent, Joe Becker. Therein, he testified that he “investigated the CITY’s database and relevant records and found that they contain no requests or complaints concerning the roadway at or near Arnold Drive and Gloucester Lane, Martinez, CA 94553 prior to March 9, 2024, the date of Plaintiff’s alleged injury.” (Becker Decl. at ¶ 4.)

Compared to the testimony adduced in *Sargenti v. City of Long Beach* (2026) 120 Cal.App.5th 702, the Court finds that it is sufficient to meet the Defendant’s initial burden with respect to notice. In that case, the City of Long Beach submitted the declaration of its superintendent of street maintenance for the Long Beach Public Service Bureau, Public Works Department. (*Id.* at p. 711.) The declaration in that case described the City’s procedures for “receiving or obtaining notifications or any information

as it relates to alleged dangerous conditions on the City sidewalks or streets,” which included complaints or requests for service received from phone calls and the City’s website and web-based application and observations by City Public Works crewmembers in the field. (*Id.*)

That said, the Court also notes that the declaration in *Sargenti* also stated that he “asphalt patch in question also differs in the manner in which it was constructed from how the City Public Works generally performs driveway apron asphalt patching” and that, because “the subject asphalt patch is on a driveway that provides ingress and egress to the parking lot” of a convention center managed and operated by a third party, “the City would have no reason to perform a subject asphalt patch.” (*Id.*) Here, the Defendant has not adduced any evidence to show that, as a matter of law, its employees or agents were not responsible for creating the street condition at or near Arnold Drive and Gloucester Lane.

The Defendant argues in reply that it has met its burden that it did not create the condition “by showing that Plaintiff has no evidence to prove a required fact.” (Reply at 5:3-4.) This argument is without reference to the Separate Statement, however, which does not include a single undisputed material fact regarding creation of the street condition at issue.

Under well-established summary judgment standards, a plaintiff’s burden to demonstrate—with evidence—a triable issue of material fact is only triggered once the moving party shows “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Here, the City of Martinez has produced no evidence to negate plaintiff’s theory that its agents or employees created the dangerous street condition.

Furthermore, the Court also notes that the City of Martinez filed a Cross-Complaint against MCK Services, Inc. for (1) equitable indemnity, (2) contractual indemnification, (3) contribution, (4) comparative negligence, and (5) declaratory relief. That Cross-Complaint alleges that “on June 13, 2023, [the City of Martinez] entered into a Construction Project Agreement with MCK Services, Inc. for a Pavement Rehabilitation Project Agreement.” (Cross-Complaint at ¶ 16.) The Cross-Complaint further alleges that “[t]he plan includes pavement and striping plans for the street and corner Plaintiff alleges the incident occurred (Gloucester Lane and Arnold Drive).” (*Id.* at ¶ 18.) There is a strong implication that the City’s agents are responsible for the paving of the area where Plaintiff’s accident occurred.

Because the Defendant has not negated all theories of liability alleged in Plaintiff’s complaint, summary judgment is inappropriate. (See, e.g., *Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1165 [summary adjudication reversed where the defendant failed to address theory of liability alleged in complaint]; *Lopez v. Superior Court* (1996) 45 Cal.App.4th 705, 717 [reversing summary judgment where the defendant did not show it was entitled to judgment with respect to all theories of liability].)

Objections to Evidence

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).)

Plaintiffs’ Objections to Defendant’s Evidence:

Objection No. 1: Overruled.

Objection No. 2: Overruled.

Objection No. 3: Overruled.